

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ja'Quawn Turner	Team: Squad #4	CCRB Case #: 202201639	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/15/2022 1:30 AM	Location of Incident: Purdy avenue and Kell Avenue	Precinct:	18 Mo. SOL 9/15/2023	EO SOL 9/15/2023	
Date/Time CV Reported Tue, 03/15/2022 4:04 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 03/15/2022 4:04 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Sean Tiernan	04001	953482	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Sean Tiernan	Abuse: Sergeant Sean Tiernan forcibly removed § 87(2)(b) to the hospital.	

Case Summary

On March 15, 2022, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On March 15, 2022, at approximately 1:30 am, Sergeant Sean Tiernan and additional officers from the 121st Precinct responded to a call of a past robbery at Kell Avenue and Purdy Avenue in Staten Island. Officers interviewed § 87(2)(b) and Sgt. Tiernan forcibly removed § 87(2)(b) to the hospital (**Allegation A: Abuse of Authority, § 87(2)(g)**).

There were no arrests made or summonses issued as a result of this incident.

There were 10 BWC videos related to this incident (**BR2-11**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Sean Tiernan forcibly removed § 87(2)(b) to the hospital.

On March 15, 2022, at approximately 1:30am, § 87(2)(b) alleged that he was attacked and robbed during a night walk in his neighborhood on the corner of Purdy Avenue and Kell Avenue in Staten Island (**BR1**). § 87(2)(b) called the police. Sgt. Tiernan, PO Nayyer, PO Besignano, and PO Sheridan responded to the scene. Sgt. Tiernan questioned § 87(2)(b) about the robbery and the assault. § 87(2)(b) suspected it may have been someone that he knew and mentioned that “§ 87(2)(b)” may have been amongst the group of men who attacked him. When detectives on scene ran the name § 87(2)(b) provided, they found that the individual died last November. The officers’ demeanor changed, and they questioned him as though he was a criminal. Sgt. Tiernan accused § 87(2)(b) of being delusional and seeing dead people. While speaking to Sgt. Tiernan, § 87(2)(b) noticed that he was bleeding a little from his right eye, so he wanted to go home. Sgt. Tiernan would not let § 87(2)(b) go home and insisted that he go to the hospital for an evaluation. After some back and forth, § 87(2)(b) complied and went to the hospital.

Sgt. Tiernan responded to a 10-20, which is a past robbery (**BR12**). Sgt. Tiernan arrived and spoke to § 87(2)(b) for about 20-25 minutes to get a detailed report of what happened. § 87(2)(b) explained that he was going for a night walk around his neighborhood when he was robbed and attacked. Sgt. Tiernan noticed that the more he spoke to § 87(2)(b) the more the details in his story changed. Sgt. Tiernan spoke of inconsistencies in the details of the attack and how § 87(2)(b) sustained his injuries. Sgt. Tiernan canvased the surrounding area to see if he could find further evidence. Sgt. Tiernan also called in night watch detectives to assist. § 87(2)(b) told the night detectives that one of the men involved was someone he recognized as § 87(2)(b). When the detectives looked up this person, they found that he was deceased and had been since the previous November. § 87(2)(b) argued with Sgt. Tiernan and the detectives that the reports had to be false because he had just seen § 87(2)(b) in Florida the week

prior. Upon hearing this, Sgt. Tiernan suspected that § 87(2)(b) may be “delusional” and needed to be evaluated. Sgt. Tiernan called EMS and had § 87(2)(b) taken to the hospital from the scene. Sgt. Tiernan verbalized that he felt that if § 87(2)(b) was having delusions, he was a danger to himself. Sgt. Tiernan did not state whether he saw physical injuries on § 87(2)(b).

Sgt. Tiernan’s, PO Besignano’s, PO Nayyer’s, and PO Sheridan’s BWC recordings are all substantively similar (**BR2, BR3, BR4, BR5, BR6, BR7, BR8, BR9, BR10, BR11**). PO Nayyer and PO Sheridan’s BWC start with the officers already in conversation with § 87(2)(b) (**BR4, BR5**). When audio starts, an officer walks over to Sgt. Tiernan and explains that § 87(2)(b) thought that he knew one of the individuals that attacked him.

At the 01:26 time stamp of PO Sheridan’s BWC (**BR5**), an officer off camera shines a light into § 87(2)(b)’s eye. § 87(2)(b) quickly asks to remove the light as he complains that he has some injury there. § 87(2)(b) complained of blood near his right eye as a result of the attack. It is not clear on the BWC that § 87(2)(b) has an injury or what injury it is. At the 01:37 time stamp (**BR5**), § 87(2)(b) describes how he was attacked showing that he was punched in the back of the head. At the 09:15 time stamp (**BR5**), Sgt. Tiernan is seen and heard trying to get the details of the incident from § 87(2)(b). Sgt. Tiernan says that there is a gap in time in § 87(2)(b)’s story and asks for clarification. § 87(2)(b) talks about how he is big and can fight as a justification to why he did not give over his belongings when approached during the robbery. At the 09:52 time stamp (**BR5**), § 87(2)(b) becomes frustrated with Sgt. Tiernan stating that the sergeant cannot repeat questions as if the sergeant is “grilling him.” At the 10:24 time stamp, § 87(2)(b) changes his story and states that he does not know that he was knocked out after previously stating that he was knocked out for a few seconds. At 13:58 time stamp, Sgt. Tiernan suggests that § 87(2)(b) go to the hospital to check on his injuries, but § 87(2)(b) refuses because he says that he does not want to upset his mother.

At 01:00 time stamp of the second part of PO Sheridan’s BWC (**BR6**), § 87(2)(b) is informed by the night watch detectives that § 87(2)(b), the man § 87(2)(b) believed attacked him, is dead. § 87(2)(b) tells the detectives that people are claiming § 87(2)(b) died of lung cancer but that he was not convinced. Sgt. Tiernan checks in with § 87(2)(b) to make sure the robbery happened and informs him that filing a false report is an arrestable offense. At the 01:36 time stamp, § 87(2)(b) tells the night watch detective and Sgt. Tiernan that the death certificate they had for § 87(2)(b) was forged and that § 87(2)(b) is not “really” dead. The night watch detective states that he is questioning § 87(2)(b)’s mental state. § 87(2)(b) responds, “Would me seeing a psychologist make you feel better?”. The detective responds, “I think you should.” At the 03:47 time stamp, § 87(2)(b) stated that he saw § 87(2)(b) in Florida the week prior.

Aided Report Number § 87(2)(b) was prepared by PO Leila Sheridan. The report notes that § 87(2)(b) was emotionally disturbed. “Sick” is checked off under the “Actions of EDP” section. It details that “at tpo aided was delusional and claiming someone robbed him. Aided removed to hospital for further evaluation. Supervisor/nightwatch on scene. No injuries.” § 87(2)(b) was removed to § 87(2)(b).

§ 87(2)(b) (BR 18).

According to Patrol Guide Procedure 221-13, an emotionally disturbed person is a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others (BR 17).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR13).
- Sergeant Sean Tiernan has been a member-of-service for 10 years and this is the first CCRB complaint to which he has been a subject (BR14).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming unlawful search and seizure, false arrest, false imprisonment, defamation, illegal entry into home, intentional infliction of emotional distress, violations of federal and state constitution, and vicarious liability and is seeking \$1,000,000 as redress (BR15). There is no 50-H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 4

Investigator: Inv. JaQuawn Turner Inv. JaQuawn Turner 8/9/2022
Signature Print Title & Name Date

Squad Leader: Raquel Velasquez IM Raquel Velasquez 08/09/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date